



## **CHAMELI DEVI INSTITUTE OF LAW**

### **VERITAS MOOTING SOCIETY**

### **PRELIMS ROUND PROPOSITION**

#### **"THE BREACH"**



**Client: ANANYA SETHI (Mr. Raghav Sethi, 40 years old, proprietor of Sethi Agro Traders.)**

Ananya Sethi enters your law firm seeking urgent help for her father, Mr. Raghav Sethi, a well-known wholesale grain supplier. On 20 July 2025, Raghav had signed a Supply Contract with FreshBasket Foods Pvt. Ltd. for the sale of 500 tonnes of premium wheat at ₹28/kg, to be delivered within 30 days. FreshBasket had paid ₹10 lakh as advance.

Shortly after, heavy rains caused partial flooding in Raghav's storage godown, damaging nearly 150 tonnes of wheat. Acting immediately, Raghav purchased replacement stock from another supplier at a higher price and managed to prepare nearly the full quantity for delivery. He informed FreshBasket about a delay of four days, and they accepted it over email.

However, on 10 August 2025, FreshBasket abruptly cancelled the contract, alleging "inferior quality wheat based only on photos circulating among their workers. They refused to accept delivery and demanded refund of the advance plus compensation. Raghav maintains that the wheat is of premium quality and holds laboratory test reports proving the same.

Later, Raghav learned that FreshBasket had already entered into a cheaper contract with a competitor and was using false allegations to escape liability. FreshBasket additionally posted online that Sethi Agro sells "contaminated grain, causing reputational damage and cancellation of two confirmed orders.

**Ananya wants to know her father's legal remedies, especially regarding:**

1. Whether he can seek specific performance to compel FreshBasket to accept delivery.
2. Whether he can obtain an injunction under the Specific Relief Act against defamatory online statements.
3. Damages he may claim for breach of contract and loss of reputation/business.

#### **COUNSELLOR'S MAIL**

Raghav Sethi, a wholesale wheat supplier, had a valid supply contract with FreshBasket Foods Pvt. Ltd., who paid an advance of 10 lakh, Flooding damaged part of his stock, but he procured replacement goods at a higher price and informed FreshBasket of a short delay, which they accepted. FreshBasket later cancelled the contract without inspection, citing "inferior quality," though Raghav has lab reports proving otherwise. They have also posted defamatory remarks online, leading to loss of business.

The client wants guidance on specific performance, injunctida under SRA, and damages for breach and defamation.

#### **DETAILS FOR CLIENT:**

Raghav Sethi, 40, owns Sethi Agro Traders, a wholesale grain business. On 20 July 2025, he entered into a Supply Contract with FreshBasket Foods Pvt. Ltd., agreeing to deliver 500 tonnes of premium wheat at 28/kg within 30 days. FreshBasket paid a 10 lakh advance, the rest was due upon delivery.

Due to sudden heavy rains, his godown flooded, damaging about 150 tonnes. Raghav immediately purchased replacement wheat from another supplier at a higher price to avoid breach and informed FreshBasket that delivery would be delayed by four days. This revised timeline was accepted over email.

On 10 August 2025, FreshBasket suddenly cancelled the contract, claiming the wheat was "inferior in quality based only on photos seen by their workers. They refused to accept delivery and demanded refund of the advance along with compensation. Raghav has laboratory test results confirming the wheat meets quality standards.

He later discovered FreshBasket had already negotiated a cheaper deal with a competing supplier and was attempting to escape the contract. FreshBasket posted on social media that Sethi Agro "sells contaminated grain." As a result, two of Raghav's new business orders worth substantial value was cancelled.

**Raghav's concerns:**

1. He wants FreshBasket to honour the contract and take delivery.
2. He wants to stop them from posting false and damaging statements.
3. He wants compensation for financial loss, reputational harm, and wrongful cancellation.
4. He seeks clarity on legal protections under the Sale of Goods Act and Specific Relief Act.
5. Ananya approaches you because Raghav is distressed and wants immediate legal action.

**Client Instructions:**

1. You are expected to provide clear legal advice and recommend the most appropriate solution for my situation.
2. You must maintain the confidentiality of all information shared with you.
3. You should aim for a timely and cost-effective resolution, avoiding litigation if it can be reasonably avoided.
4. You may consider settlement options, as long as my rights and interests remain secure.

**DISCLOSURES TO JUDGES & COUNSELLORS ONLY (HIDDEN FACTS)**

Not to be revealed unless judges ask specific questions.

1. FreshBasket had internally decided to switch suppliers even before the flooding incident
2. Their purchasing manager received a commission from the competitor company.
3. The "inferior quality photos were taken from old stock, not the fresh batch procured by Raghav.
4. Raghav's delivery trucks were ready for dispatch when FreshBasket cancelled.
5. The defamatory post was shared in a private WhatsApp group of distributors, later leaked publicly.
6. FreshBasket deleted the acceptance email of the delayed delivery from their server.
7. Two cancelled orders together were worth over RS. 35 lakhs.



## CHAMELI DEVI INSTITUTE OF LAW

### VERITAS MOOTING SOCIETY

### SEMI-FINAL ROUND PROPOSITION

#### “THE FRACTURED HOME”



**Client Name: Mrs. Vaishali Kapoor, 36 years old, Lecturer at a Government College.**

Mrs. Vaishali Kapoor arrives at your legal aid office visibly exhausted and deeply distressed. She has been married to Mr. Arjun Kapoor, a 40-year-old businessman, for almost fourteen years. The marriage was initially peaceful, but over the last four years, Vaishali describes it as “emotionally draining, financially unstable, and increasingly unsafe.” Vaishali alleges that Arjun has developed severe anger issues, frequently loses his temper over minor matters, and has begun making degrading comments about her profession, accusing her of “neglecting the marriage” simply because she works.

According to Vaishali, the situation deteriorated significantly during the COVID-19 lockdown. Arjun lost a large portion of his business income and began taking loans without informing her. She later discovered that he pawned some of her **Stridhan jewelry** which her parents had given her during the wedding. When Vaishali questioned him, he told her she had “no right to question how he runs the household.”

She alleges that he has slapped her twice during heated arguments and regularly throws objects, punches walls, and verbally abuses her in front of their 11-year-old son, Kabir. While Vaishali insists she still fears for her physical safety, she has never filed a police complaint, believing it might destroy the marriage permanently.

Vaishali also describes long-term financial manipulations. Even though she is employed, she has always deposited her salary into their joint account for “family unity,” while Arjun manages all expenses. In the past year, Arjun has withdrawn large sums without explanation. Recently, she learned that Arjun secretly opened a separate bank account and began diverting his business income there. He now refuses to contribute to Kabir’s school fees, extracurricular activities, or medical expenses, stating, “You have a job --you manage everything.” Vaishali’s entire monthly income barely covers the child’s schooling and household bills, and she is increasingly concerned she cannot sustain this.

Tensions escalated last month when Arjun demanded that Vaishali resign from her job and “focus on the family,” threatening that if she refused, he would file for custody of Kabir, alleging she is “an irresponsible mother who leaves the child alone.” Vaishali denies this completely, explaining that she has always balanced work and parenting, and that Arjun himself spends very little time at home. She fears Arjun may attempt to manipulate the child or use financial pressure to gain custody.

Two weeks ago, Arjun forcibly asked Vaishali to leave the matrimonial home, saying it “belongs to him and his family,” although the flat is registered jointly in their names and Vaishali has contributed significantly to EMIs. When she refused, Arjun’s mother insisted she should “go back to her parents if she cannot adjust,” adding that the family “has no obligation to keep her anymore.” Vaishali feels emotionally isolated and unwelcome in the home she helped build.

## **CLIENT'S PRIMARY CONCERNS**

Mrs. Vaishali seeks detailed legal guidance on the following:

1. Whether she should file for divorce on grounds of cruelty, abuse, dowry harassment, and financial neglect, or first opt for judicial separation.
2. Whether she can claim maintenance for herself and her son Kabir, despite being employed.
3. Whether Arjun's concealment of income strengthens her claim for maintenance.
4. Whether she has a legal right to continue residing in the jointly owned matrimonial home, and whether Arjun can legally force her to leave.
5. How she can recover her stridhan jewellery, allegedly pawned by Arjun without her consent.
6. What are her chances of retaining custody of Kabir, and how courts assess custody when one spouse alleges irresponsibility or unfitness.

## **EMOTIONAL & PRACTICAL CONTEXT:**

Vaishali is torn between:

- protecting her child,
- avoiding social stigma,
- and escaping an environment she perceives as unsafe and unsustainable.

She is uncertain whether to pursue litigation, seek immediate protective measures, explore counselling or mediation, or prepare for a complex long-term legal battle. She is looking for comprehensive, confidential, empathetic, and strategic legal advice to guide her next steps.



## **CHAMELI DEVI INSTITUTE OF LAW**

### **VERITAS MOOTING SOCIETY**

### **FINAL ROUND PROPOSITION**



#### **RIGHT TO PRIVACY VIOLATION (SOCIAL MEDIA)**

**Client Name: Aisha and her elder brother Karan Verma, approaches your law firm to seek legal help.**

Aisha Verma, 26, is a postgraduate student pursuing Mass Communication in Indore. She is active on social media and frequently posts academic content, travel blogs, and photography. For the past three months, she noticed unusual activity on her social media accounts—several unknown profiles repeatedly viewed her stories within seconds of posting, commented strange symbols, and even attempted to message her.

Initially, she ignored it, assuming it was harmless. But on 12 October 2025, Aisha received screenshots from her friend showing a fake Instagram account using her photos, personal details, and edited images that portrayed her in a negative light. The fake account had also sent follow requests to her classmates, professors, and relatives, pretending to be her.

Two days later, Aisha began receiving calls and WhatsApp messages from two unknown numbers asking inappropriate personal questions. When she blocked them, the messages continued from different numbers. One of her secured accounts, linked to cloud storage showed an attempted login from an unknown device, raising fears of hacking.

On 18 October 2025, a classmate informed her that sensitive personal photos, taken from her private profile, were being circulated through unidentified WhatsApp groups. Aisha is now scared, emotionally disturbed, and afraid that her academic reputation and future career prospects may suffer.

**She suspects someone from her college is behind it, but she has no proof. Aisha has screenshots of:**

- The fake profile
- Messages from unknown numbers
- Login attempt alerts

**Details of the WhatsApp circulation. She now seeks legal advice to:**

1. Protect her right to privacy under Article 21 of the Constitution
2. Initiate action under the Information Technology Act, 2000 (Sections 66C, 66E, 67)
3. File a criminal complaint for impersonation and harassment
4. Request immediate removal of the fake accounts and harmful content
5. Ensure her digital data and accounts are secured Aisha's elder brother, Karan Verma, approaches the lawyer on her behalf because Aisha is mentally distressed and hesitant to speak about the issue